

ARIZA v. LAKESIDE VENTURES, LLC, et al

22CV46059

**PLAINTIFF'S MOTION FOR COMPLAINT FOR
CONVERSION, UNJUST ENRICHMENT AND
MISAPPROPRIATION OF FUNDS [sic] AND MOTION FOR
ORDER TO SHOW CAUSE FOR INDIRECT CONTEMPT OF
COURT**

This is a contract dispute involving a proposed transaction for the sale of a mobile home park in Mokelumne Hill.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter, the Court finds that plaintiff ultimately included the statement in the Reply Brief filed on May 7, 2024. Although not placed in any of the notices filed, the court will consider the inclusion as sufficient compliance in the hopes that its ruling on these

matters may clarify the January 26, 2024 Order that directed “Defendants to operate the Park pending resolution of this litigation.”

There are two matters before the court - a “Motion for Complaint” (“Motion”) and “Motion for Order to Show Cause for Indirect Contempt of Court” (“OSC”). These documents were separately filed on April 5, 2024. There is also a document entitled “PLAINTIFF HELEN ARIZA DEMAND FOR BILL OF PARTICULARS UNDER C.C.P.454” that was filed contemporaneously with the other two.

EVIDENTIARY REQUESTS AND OBJECTIONS

REQUESTS FOR JUDICIAL NOTICE

Each party is asking the Court to take judicial notice and consider various court documents that support their respective positions. There are also objections to two declarations of plaintiff.

Regarding the "Request For Judicial Notice in Support of Opposition of Scott Nordyke and Arthur Trillo to Helen Ariza's Motion for Order to Show Cause for Indirect Contempt of Court", the Court **GRANTS** the request as to:

1. Order Granting and Denying Motion for Preliminary Injunction [of Nordyke Defendants] signed January 26, 2024; and
2. Order Denying Plaintiff Helen Ariza's Motion for Preliminary Injunction signed April 30, 2024.

Regarding the "Request for Judicial Notice In Support Of Opposition of Scott Nordyke and Arthur Trillo to Plaintiff Helen Ariza's Motion for Complaint for 1. Conversion 2. Unjust Enrichment, 3 Misappropriation of Funds by Scott Nordyke, Arthur Trillo and Bonnie K Tuckerman-Aho" the Court **GRANTS** the request as to:

1. Order Granting and Denying Motion for Preliminary Injunction [of Nordyke Defendants] signed January 26, 2024; and
2. Order Denying Plaintiff Helen Ariza's Motion for Preliminary Injunction signed April 30, 2024.

Regarding the “Requests For Judicial Notice in Support for Plaintiff Helen Ariza's Motion for Complaint 1. Conversion, 2. Unjust Enrichment, 3. Misappropriation of Funds . . . ” the Court **DENIES** the following requests:

- “1. Payments to Defendant Bonnie K. Tuckerman-Aho (Aho) loan payments from August 1, 2021, through November 2022, totalling \$37,382.23 ;
- “2. Contract of Sale, Recorded Agreement of Sale, Addendum to the Contract of Sale;
- “3. Chicago Title;
- “4. Subpeona for documents;
- “5. Tenant letters;
- “6. Altered check made out to Beach Lake Village altered Aho on December 5, 2021; and
- “7. Expenditures paid by Ariza while Aho was under suspension until August 2022” .

Facts in the judicial record that are subject to dispute, such as allegations in affidavits, declarations, and probation reports, are not the proper subjects of judicial notice even though they are in a court record. (*Richtek USA, Inc. v uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 659.) Judicial notice is not the proper method for the introduction of these seven requested categories of documents.

DEFENDANTS' "OBJECTIONS TO DECLARATION OF HELEN ARIZA ATTACHED TO NOTICE OF MOTION AND MOTION FOR ORDER TO SHOW CAUSE FOR INDIRECT CONTEMPT OF COURT"

DEFENDANTS' "OBJECTIONS TO DECLARATION OF HELEN ARIZA FILED SEPARATELY IN SUPPORT OF MOTION FOR ORDER TO SHOW CAUSE FOR INDIRECT CONTEMPT OF COURT"

Defendants filed two separate pleadings objecting to plaintiff's declarations in support of the Motion and OSC.

There are three (3) objections to plaintiff's "DECLARATION OF HELEN ARIZA" filed as one pleading with Notice of Motion, Motion for OSC, and Points and Authorities, these are all **SUSTAINED**. The averments in the declaration lack relevance and foundation, are opinions, and legal conclusions.

There are eight (8) objections to plaintiff's "DECLARATION REGARDING CONTEMPT OF COURT BY SCOTT NORDYKE AND ARTHUR TRILLO" filed separately on April 5, 2024, these are all **SUSTAINED**. The averments in the declaration lack relevance and foundation, are opinions, and legal conclusions.

SUBSTANTIVE MOTIONS

PLAINTIFF'S MOTION FOR COMPLAINT FOR CONVERSION, UNJUST ENRICHMENT AND MISAPPROPRIATION OF FUNDS

It is unclear what this document is seeking; the document, despite its title, appears to be an attempt to file an amended verified complaint. The complaint has limited factual allegations and a vague prayer. The "Motion" contains no language requesting leave to amend. To amend a complaint where an answer has been filed plaintiff is to either receive the consent of the other party or obtain leave of court through a noticed motion to file an amended complaint. (California Code of Civil Procedure § 472; *Barton v. Kahn* (2007) 157 Cal.App.4th 1216.)

A motion is an application made to the court for an order. The movant has the burden to support their motion by proof. (*Mills Land & Water Co. v. Golden W. Ref. Co.* (1986) 186 Cal. App. 3rd 116, 135.) Giving plaintiff every benefit of doubt, the motion can be viewed as a request for leave to amend; but even under that generous interpretation plaintiff fails because she has not provided any facts to support an inference that she can overcome Defendant's defenses if given such permission. (See *Goodman v. Kennedy* (1976) 18 Cal.3rd 335, 349.)

The “Motion” is **DENIED**.

PLAINTIFF’S MOTION FOR ORDER TO SHOW CAUSE FOR INDIRECT CONTEMPT OF COURT

Plaintiff, the enjoined party in Court’s January 26, 2024 Order, is bringing a motion to enforce that Order against defendants.

As explained in *Koshak v. Malek* (2011) 200 Cal. App. 4th 1540, 1548-49, an indirect contempt proceeding is commenced by the presentation of an affidavit setting forth the alleged contemptuous acts. The affidavit is in effect a complaint framing the issues before the court, and is a jurisdictional prerequisite to the court’s power to fashion an appropriate remedy.

The Declaration of Helen Ariza does not allege violations of existing court orders. The declaration contains three numbered allegations of defendants participating in Unlawful Detainer actions and one allegation of defendants serving 60-day Notices to Terminate Tenancy. (Defendants’ objections to these allegations in the Declaration in Support of the OSC were sustained.) Even if this Court was to consider the declaration, these statements reflect the type of park management activity by defendants contemplated by this Court’s Order of January 26, 2024.

The Motion for Order to Show Cause is **DENIED**. There is no showing of a violation of any court order.

PLAINTIFF’S DEMAND FOR BILL OF PARTICULARS

There is a single “Common Count for Money Had and Received” in the Cross-Complaint filed January 31, 2023. However, a demand for a bill of particulars is not a document normally filed with the Court. The provisions of Code of Civil Procedure § 454 have long been regarded as akin to discovery and the period within which a bill of particulars is to be delivered is to be liberally construed by the court where delivery beyond the statutory deadline does not prejudice a party (*McCarthy v. Tecarte Land & Water Co.* (1896) 110 Cal. 687, 692–693).

The Court does not rule on the Bill of Particular as the filing makes no request and the procedure is not one for Court decision as framed.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants are to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

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17CV42160

CROSS-DEFENDANTS' DEMURRER AND MOTION FOR JUDGMENT ON THE PLEADINGS

The Fourth Amended Complaint ("4AC") added Cross-Defendants John Tryon, Elizabeth Tryon, Denise Tryon, and Mary Tryon to the litigation. On March 27, 2024, cross-defendants John and Elizabeth Tryon filed a demurrer to the 4AC.

The FAC introduced four new parties: Denise Tryon, Mary Tryon, John Tryon, and Elizabeth Tryon. The other added defendants separately answered the FAC on March 4, 2024. Three cross-defendants, Thomas Tryon, Denise Tryon, and Mary Tryon, moved for a Judgment on the Pleadings on April 19, 2024.

DEMURRER TO FOURTH AMENDED COMPLAINT

A demurrer presents an issue of law regarding the sufficiency of the allegations outlined in the complaint. The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein), or from matters outside the pleading which are judicially noticeable. The complaint is read as a whole. Material facts properly pleaded are assumed true, but contentions, deductions or conclusions of fact/law are not. In general, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts. in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (California Code of Civil Procedure (CCP) §§ 430.10 *et seq.*; *Blank v. Kirwan* (1985) 39 Cal.3rd 311, 318; *Gray v. Dignity Health* (2021) 70 Cal.App.5th 225, 236 n.10.)

The First Cause of Action in the Fourth Amended Complaint.

The demurrer of John Tryon and Elizabeth Tryon has been mooted by the dismissal of the Fourth Amended Complaint's First Cause of Action.

The Fourth Cause of Action for Breach of Contract is Barred Under the Statute of Limitations.

The demurrer of John Tryon and Elizabeth Tryon to the cross-complainant's fourth cause of action turns on equitable considerations to the tolling of the four-year statute of limitations. (See Code of Civil Procedure section 337.)

The court has been continually cited to a document labeled "Land Swap Agreement" by all parties throughout this dispute. Both parties have referred to this document in their respective complaints and cross-complaints, as well as citing it in law and motion matters. The Agreement is at the very core of the litigation, as all parties allege ongoing violations by the others to justify bringing suit beyond the statutory period.

Equitable tolling is a judicially created doctrine in California that can suspend or extend a statute of limitations to ensure fundamental practicality and fairness. This doctrine is applied in carefully considered situations to prevent the unjust technical forfeiture of